EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 20424/10
L. G. and Others
against Hungary

The European Court of Human Rights (Fourth Section), sitting on 4 September 2018 as a Committee composed of:

Georges Ravarani, *President,*
Marko Bošnjak,
Péter Paczolay, *judges,*

and Andrea Tamietti, *Deputy Section Registrar,*

Having regard to the above application lodged on 22 March 2010,

Having regard to the formal declarations accepting a friendly settlement of the case,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The Hungarian Government ("the Government") were represented by Mr Z. Tallódi, Agent of the Ministry of Justice.

2. The applicants complained under Article 11 of the Convention about the dispersal of their demonstration by the police.

3. The applicants were initially represented by Mr L. Grespik. On 4 May 2017, Mr T. Gaudi-Nagy, a lawyer practising in Budapest, informed the Court of the death of Mr Grespik and presented powers of attorney from two of the applicants.

4. On 2 June 2017 the Court invited the Government to submit observations on the admissibility and merits of the applicants' complaint. By a letter dated 13 June 2017 Mr Gaudi-Nagy was informed of the communication of the case and invited to submit powers of attorney emanating from all the applicants.

5. On 6 April 2018, 120 of the 173 applicants submitted powers of attorney, authorising Mr Gaudi-Nagy to act on their behalf and represent them before the Court. The remaining fifty-three applicants did not submit any power of attorney for Mr Gaudi-Nagy or any other person.

A. Friendly settlement reached in respect of 120 applicants

6. A list of the 120 applicants concerned is set out in Appendix A.

7. On 16 May and 22 May 2018 the Court received friendly settlement declarations signed by 120 applicants and the Government under which the applicants agreed to waive any further claims against Hungary in respect of the facts giving rise to this application against an undertaking by the Government to pay them EUR 862 (eight hundred and sixty-two euros) each to cover any pecuniary and non-pecuniary damage as well as costs and expenses, which will be converted into the currency of the respondent State at the rate applicable on the date of payment, and will be free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the case.

B. The remaining applicants

8. A list of the remaining fifty-three applicants is set in Appendix B.

9. These applicants have not approached the Court since 21 March 2016, the date of the last letter from Mr Grespik. Following the death of their representative, these applicants did not submit a power of attorney authorising their representation before the Court. In addition, Mr Gaudi-Nagy, the new representative of 120 applicants, informed the Court that he had tried to contact the remaining 53 applicants at the addresses registered with Mr Grespik and at those resulting from the official register. However, his attempts were unsuccessful.

THE LAW

10. As regards the 120 applicants listed in Appendix A, the Court takes note of the friendly settlement reached between them and the Government (see paragraph 7 above). It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no

reasons to justify a continued examination of the application. This part of the application should therefore be struck out of the list of cases in accordance with Article 39 of the Convention.

11. As regards the remaining fifty-three applicants listed in Appendix B, their failure to keep the Court informed about a new representative or, indeed, to communicate with the Court or with the representative appointed by other applicants in any manner indicates that they have lost interest in pursuing the application. It is also of significance that the new representative's attempts to contact them at the available addresses were of no avail (see paragraph 9 above). The Court therefore concludes that they may be regarded as no longer wishing to pursue the application (Article 37 § 1 (a) of the Convention). Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and the Protocols thereto which require the continued examination of the application.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases in accordance with Article 39 of the Convention as concerns the 120 applicants listed in Appendix A;

Decides to strike the application out of its list of cases in accordance with Article 37 of the Convention as concerns the remaining 53 applicants listed in Appendix B.

Done in English and notified in writing on 27 September 2018.

Andrea Tamietti Deputy Registrar	Georges Ravarani President

APPENDIX A

List of applicants represented by Mr Tamás Gaudi-Nagy

No.	Initials	Date of birth	Place of residence
1.	L.G.	25/09/1948	Budapest
2.	R.A.	03/06/1970	Budapest
3.	Z.A.	04/02/1936	Budapest
4.	K.M.B.	16/06/1950	Budapest
5.	P.B.	05/07/1966	Budapest
6.	I.B.	20/03/1943	Telki
7.	L.B.	29/07/1943	Budapest
8.	C.B.	22/01/1955	Üröm
9.	T.B.	14/02/1969	Budapest
10.	P.B.	07/10/1944	Budapest
11.	S.B.	20/11/1945	Budapest
12.	A.B.	08/05/1968	Budapest
13.	A.B.	05/04/1941	Budapest
14.	O.B.	18/03/1971	Budapest
15.	G.B.	12/04/1952	Budapest
16.	G.B.	10/10/1951	Budapest
17.	G.B.	20/11/1952	Szeged
18.	G.B.	11/03/1979	Budapest

No.	Initials	Date of birth	Place of residence
19.	A.B.	08/11/1969	Budapest
20.	B.B.	28/01/1969	Budapest
21.	I.B.	01/02/1961	Lipót
22.	A.B.B.	17/12/1957	Budapest
23.	Z.B.	04/08/1976	Budapest
24.	S.B.	06/12/1971	Kételek
25.	C.B.	15/05/1980	Budapest
26.	T.B.	11/04/1981	Budapest
27.	A.C.	08/06/1945	Budapest
28.	S.D.	15/04/1980	Jászboldogháza
29.	J.D.	12/03/1949	Budapest
30.	A.D.	26/02/1976	Budapest
31.	E.D.	11/01/1956	Budapest
32.	K.F.	06/11/1969	Budapest
33.	A.F.	23/08/1953	Budapest
34.	G.F.	07/10/1944	Dunakeszi
35.	F.F.	23/05/1948	Budapest
36.	Z.F.R.	12/09/1979	Budapest
37.	E.F.	25/12/1961	Budapest
38.	R.F.	09/09/1943	Budapest

No.	Initials	Date of birth	Place of residence
39.	D.F.	09/06/1986	Budapest
40.	G.F.	22/11/1959	Budapest
41.	S.F.	14/11/1987	Budapest
42.	Z.G.	14/02/1970	Budapest
43.	L.G.	24/10/1966	Budapest
44.	A.G.	02/09/1950	Budapest
45.	P.G.	13/07/1955	Budapest
46.	J.G.	03/07/1947	Miskolc
47.	G.H.	17/04/1970	Budapest
48.	P.H.	03/02/1987	Pécs
49.	L.H.	07/07/1959	Biatorbágy
50.	E.H.	05/01/1949	Budapest
51.	P.H.	10/08/1951	Budapest
52.	M.H.D.	09/07/1957	Budapest
53.	V.H.P.	03/09/1962	Budapest
54.	E.H.T.	29/04/1949	Budapest
55.	I.H.V.	04/04/1942	Budapest
56.	I.J.	11/02/1972	Budapest
57.	K.K.	29/10/1956	Páty
58.	L.K.	19/03/1960	Budapest

No.	Initials	Date of birth	Place of residence
59.	K.K.	28/04/1979	Budapest
60.	L.K.	23/02/1945	Budapest
61.	J.D.K.	07/03/1975	Budapest
62.	K.C.K.	08/08/1949	Erdőtelek
63.	C.K.	03/10/1971	Budapest
64.	K.K.	05/02/1950	Dorog
65.	L.I.K.	10/10/1956	Törtel
66.	J.K.	21/09/1929	Budapest
67.	K.K.S.	30/01/1973	Budapest
68.	K.K.	16/05/1964	Budapest
69.	A.L.	21/04/1955	Páty
70.	K.L.	11/09/1972	Budapest
71.	Z.M.T.	19/02/1952	Budapest
72.	T.M.	01/02/1941	Páty
73.	D.M.	02/06/1978	Gyöngyös
74.	I.M.	19/07/1951	Gyöngyös
75.	Z.M.	06/08/1965	Budapest
76.	B.N.	13/09/1958	Budapest
77.	J.N.	31/08/1959	Budapest
78.	Z.N.	30/06/1976	Budapest

No.	Initials	Date of birth	Place of residence
79.	L.N.	01/03/1941	Budapest
80.	I.N.	08/09/1962	Budapest
81.	E.N.	25/04/1980	Budapest
82.	T.N.	23/05/1968	Budapest
83.	Z.T.O.	05/02/1982	Budapest
84.	B.P.	16/08/1969	Salgótarján
85.	Z.P.	28/11/1970	Budapest
86.	A.P.	20/05/1976	Budapest
87.	G.P.	03/04/1948	Budapest
88.	L.P.	11/09/1952	Budapest
89.	T.P.	03/11/1976	Budapest
90.	V.P.	24/07/1970	Budapest
91.	C.P.	21/06/1978	Szeged
92.	C.R.	15/03/1968	Budapest
93.	K.R.	21/09/1937	Tatabánya
94.	M.S.	31/12/1953	Budapest
95.	G.S.K.	08/05/1967	Kisecset
96.	B.S.	11/09/1977	Budapest
97.	T.S.	19/05/1967	Budapest
98.	G.S.	13/04/1946	Budapest

No.	Initials	Date of birth	Place of residence
99.	A.S.	03/02/1969	Budapest
100.	L.S.	06/02/1974	Budapest
101.	F.S.	11/03/1942	Budapest
102.	J.S.V.	02/10/1976	Szentendre
103.	I.S.	11/10/1957	Páty
104.	L.S.	14/09/1946	Budapest
105.	J.S.	17/10/1960	Budapest
106.	A.S.	12/06/1977	Göd
107.	A.S.	20/03/1962	Budapest
108.	G.S.	06/04/1960	Budapest
109.	J.S.	08/09/1950	Sárospatak
110.	I.S.	17/11/1944	Budapest
111.	L.S.	26/10/1964	Budapest
112.	A.L.T.	15/02/1948	Budapest
113.	G.T.	24/06/1944	Budapest
114.	I.T.	21/08/1939	Budapest
115.	J.T.	18/05/1946	Budapest
116.	V.T.	24/06/1954	Budapest
117.	D.V.	08/08/1946	Budapest
118.	H.V.	01/09/1939	Budapest

No.	Initials	Date of birth	Place of residence
119.	C.V.	06/02/1968	Budapest
120.	R.Z.	31/03/1960	Budapest

APPENDIX B

List of applicants without representative

No.	Initials	Place of residence
1.	B.A.	Érd
2.	L.R.A.	Budapest
3.	M.A.	Budapest
4.	B.B.	Százhalombatta
5.	B.B.	Halásztelek
6.	P.B.	Budapest
7.	T.B.	Budapest
8.	I.B.	Budapest
9.	T.B.	Farmos
10.	G.B.	Gomba
11.	J.B.	Debrecen
12.	R.D.	Szeged
13.	A.F.	Budapest
14.	J.F.	Budapest
15.	T.F.	Budapest
16.	B.G.	Szeged
17.	P.G.	Budapest
18.	J.G.	Budapest
19.	J.G.	Budapest
20.	C.H.	Budapest

No.	Initials	Place of residence
21.	J.H.	Budapest
22.	K.H.	Budapest
23.	I.H.	Székesfehérvár
24.	A.H.	Budapest
25.	I.H.	Budapest
26.	I.J.	Budapest
27.	J.J.	Budapest
28.	V.J.	Felsőpakony
29.	N.K.	Budapest
30.	I.K.T.	Budapest
31.	A.K.	Érd
32.	G.K.	Budapest
33.	C.K.	Vásárosnamény
34.	A.K.	Budapest
35.	Z.K.	Érd
36.	D.L.	Budapest
37.	P.M.	Budapest
38.	G.N.	Debrecen
39.	I.O.K.	Budapest
40.	G.P.	Budapest
41.	T.P.	Budapest
42.	M.J.P.	Budapest
43.	E.S.	Mogyoród

No.	Initials	Place of residence
44.	S.S.	Mogyoród
45.	I.S.	Budapest
46.	I.S.	Kistarcsa
47.	J.S.	Budapest
48.	J.S.	Budapest
49.	S.S.	Fót
50.	P.S.	Budapest
51.	T.T.	Budapest
52.	G.T.	Budapest
53.	A.V.	Érd